



NSUTMUN
DIPLOMACY DIVERSITY DISSENT

United Nations Human Rights Council

Upholding the rights of migrants, refugees and asylum seekers under domestic immigration enforcement mechanisms.

Back- ground Guide



LETTER FROM THE EXECUTIVE BOARD

Dear Delegates,

It gives me incredible delight to invite you all to the academic simulation of the United Nations Human Rights Council at NSUT MUN 2026.

We trust this experience improves your public speaking abilities and that you find out about a squeezing world issue that convolutes the existence of numerous individuals in our nation just as abroad. Please consider that the following guide, as the name suggests, is merely to provide you with the background of the agenda and cannot serve as a credible source of information. Your real research lies beyond this guide, and we hope to see some strong content and debate come our way. The agenda at hand is vast and complex and a successful discussion on it would entail the collective participation of all of you. It shall be your prerogative to decide the direction in which you want to take this committee. The background guide is designed to help everyone to understand the basic things about the agenda, and we strongly recommend that you research various things on your own. We also suggest understanding how various rights get affected (legally). Do not feel taken aback on the research, foreign policy and other details of the allotted country. Prior to coming for the meeting, it is vital to break the agenda into more modest subtopics and pose inquiries to yourself about the plan. Making chits and directed gathering points previously would give you an edge in modestly bigger committees like the UNHRC. It is also crucial to enhance your leadership skills and lobbying capacity since we would give equal importance to overall participation in the committee. We would be using the UNA-USA rules of procedure to facilitate this simulation.

(<https://unausa.org/model-un/>) Take the initiative to research properly. PLEASE DO READ THE GUIDE.

While it is a clear agenda, it is still open to interpretation and there shall be no direction of debate that shall be provided by the Executive Board. Delegates are required to direct the council at all stages, unless stagnation occurs. The agenda of an MUN is a beautiful experience and is not as difficult as it may seem.



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We hope to see a great level of effort and enthusiasm from you all, so that we all can take back a great experience.

Regards,
Executive Board

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I. About the Committee

Powers and Mandate of the United Nations Human Rights Council

The United Nations Human Rights Council (UNHRC) is the primary intergovernmental body within the United Nations system responsible for promoting and protecting human rights around the globe. Established in 2006 to replace the highly criticized UN Commission on Human Rights, the UNHRC addresses situations of human rights violations and makes formal recommendations on them. Given its specific focus, the UNHRC plays a critical role in evaluating how domestic immigration enforcement mechanisms align with international human rights standards.

Legal Basis and Authority

The UNHRC derives its authority and mandate from the UN General Assembly, specifically:

- UNGA Resolution 60/251 (2006): The founding document that established the Council, mandating it to address gross and systemic violations of human rights and ensure the universality, objectivity and non-selectivity of human rights enforcement.
- The Council is guided by the principles of the UN Charter, the Universal Declaration of Human Rights (UDHR) and other core international human rights instruments (such as the 1951 Refugee Convention and the ICCPR).

Through these provisions, the UNHRC has the legal foundation to review, investigate and publicly report on human rights crises, including those occurring at sovereign borders.

Role in Human Rights Accountability

One of the most significant aspects of the UNHRC's mandate is its ability to investigate abuses and foster accountability. The Council utilizes several key mechanisms:

1. The Universal Periodic Review (UPR): A peer-review mechanism where the human rights record of every UN Member State is assessed every four and a half years. It allows the international community to scrutinize domestic border policies and issue recommendations for improvement.
2. Special Procedures: The Council appoints independent human rights experts—such as the Special Rapporteur on the human rights of migrants—who conduct country visits, act on individual cases of reported violations and advise on thematic issues.



3. **Fact-Finding Missions and Commissions of Inquiry:** In response to severe or escalating human rights crises (such as reports of systematic border pushbacks or abuses in detention centers), the UNHRC can establish independent investigative bodies. These missions gather evidence, document violations and identify perpetrators, laying the groundwork for future legal accountability in international tribunals.
4. **The Complaint Procedure:** A mechanism allowing individuals, groups or non-governmental organizations to bring to the Council's attention consistent patterns of gross and reliably attested human rights violations.

Membership and Voting Procedure

Unlike the UN Security Council, the UNHRC does not have permanent members or veto power. Its structure is designed to be more representative:

- **Membership:** The Council consists of 47 Member States, elected by the UN General Assembly for three-year terms. Seats are distributed equitably across five regional groups (Africa, Asia-Pacific, Eastern Europe, Latin America and Caribbean and Western European and Others).
- **Voting Procedure:** Decisions, resolutions and the establishment of investigative missions are passed by a simple majority vote of the members present and voting.
- **Non-Binding Resolutions:** It is crucial to note that UNHRC resolutions are legally non-binding. They carry significant political, moral and diplomatic weight, but they cannot legally compel a state to alter its domestic laws.

Limitations and Challenges in the UNHRC's Mandate

Despite its comprehensive investigative tools, the UNHRC faces severe structural and political limitations, particularly when dealing with the highly securitized realm of domestic immigration enforcement:

- **The Shield of State Sovereignty:** The UNHRC relies entirely on the voluntary cooperation of sovereign states. Governments can refuse entry to Special Rapporteurs, deny access to immigration detention facilities or outright reject the findings of a Commission of Inquiry.
- **Lack of Enforcement Mechanisms:** Because its resolutions are non-binding, the UNHRC cannot impose economic sanctions, authorize military interventions or refer cases directly to the International Criminal Court (ICC), powers reserved for the UNSC but may recommend investigations. Its primary enforcement tool is diplomatic "naming and shaming."
- **Politicization and Bloc Voting:** The Council frequently struggles with internal geopolitical tensions. Because membership is elected by the General Assembly, states with poor human rights records often secure seats. These states frequently use regional bloc voting to shield themselves or their allies from targeted scrutiny, country-specific resolutions or investigations into their border enforcement practices.



II. Introduction to the Agenda

Throughout history, immigration has been a constant process. The enormous number of people currently being forced from their homes due to multiple crises around the world is rapidly pushing the architecture of international law regarding refugees to its limits. An economic collapse, continuing armed conflict, government-sponsored persecution and catastrophic natural disasters caused by climate change are some of the many problems creating substantial population movements that exceed the frameworks of post-World War II international law. International laws and standards including 1951 Geneva Conventions and its 1967 Protocol become obsolete in the current environment. There exists a tremendous legal and ethical tension in the work of this Committee because of the difference between the Westphalian view of state sovereignty and the universalist approach of international human rights law. The United Nations Charter, in Article 2(1) establishes the principle of state sovereignty as a fundamental law of the Member States, countering State Responsibility under State protection and determination policies

Conceptualizing the Crisis: The Legal Hierarchy of Displacement

Refugees hold a highly specific and protected status under international law. As defined by Article 1 of the 1951 Convention, a refugee is an individual who is outside their country of origin and possesses a “well-founded fear of being persecuted” on the basis of race, religion, nationality, membership of a particular social group or political opinion. Crucially, refugees are legally entitled to international protection and cannot be forcibly returned to a territory where their life or freedom would be threatened.

Asylum seekers are individuals who have fled their home countries and crossed an international border to seek sanctuary, but whose formal legal claim to refugee status has not yet been processed or determined by the host state. Every refugee begins as an asylum seeker, but not every asylum seeker will be legally recognized as a refugee. The rights of these individuals are often the most precarious, as they exist in a state of legal limbo during lengthy adjudication processes, frequently held in detention centers or temporary camps.

Migrants generally refer to individuals moving for reasons such as economic opportunity, education or family reunification and do not fall under the specific legal protections of the 1951 Refugee Convention. However, modern crises have blurred the line between “voluntary” economic migrants and “forced” survival migrants, particularly in cases of state failure, generalized gang violence or environmental collapse. These individuals represent a massive “grey zone” in international law, falling outside the protective umbrella of



the Refugee Convention while facing conditions too lethal to simply return home.

The Westphalian Dilemma: Border Integrity versus Human Security

The fundamental challenge in managing global migration lies in reconciling a state's duty to its own citizens with its obligations to the international community. From a traditional realist perspective, national security and territorial integrity are the paramount responsibilities of any government. Many destination states have reframed mass migration not as a humanitarian emergency, but as a direct threat to national security, social cohesion and economic stability. This has resulted in the militarization of borders and policies of "externalization," wherein wealthy destination states finance third-party transit countries to intercept and detain displaced persons long before they reach sovereign borders.

Conversely, the 'human security paradigm', rooted in international human rights law, shifts the focus from the defense of the state to the defense of the individual. This framework, supported by the Universal Declaration of Human Rights (UDHR), dictates that a state's right to manage its borders is not absolute. It is inherently limited by the inalienable rights of any person within its jurisdiction. When a state externalizes its borders or conducts aggressive "pushback" operations, human rights advocates argue it is violating the core tenet of international law that human dignity supersedes territorial control.

Foundational Jurisprudence: Core Principles Governing International Protection

To effectively negotiate resolutions in this committee, delegates must navigate three foundational pillars of the current legal landscape. The most critical of these is the Principle of Non-Refoulement. Codified in Article 33 of the 1951 Convention and widely recognized as customary international law, non-refoulement absolutely forbids a state from expelling or returning a person to a territory where they would face torture, cruel treatment or threats to their life. While the international standards require 'effective control' towards accountability sharing over breach of this article, states benefit from territorial responsibility exceptions. Modern diplomatic clashes frequently center on whether intercepting migrant vessels in international waters or detaining asylum seekers in offshore processing centers constitutes a breach of this principle.

The second principle involves the conflict between National Security and Universal Human Rights. While Article 14 of the UDHR grants everyone the right to seek and enjoy asylum from persecution, states frequently invoke national security exemptions to close borders during mass influxes. The committee must evaluate the threshold at which a migration crisis legitimately threatens state security and whether that threat legally justifies the suspension of



humanitarian obligations.

The third pillar is the doctrine of Burden and Responsibility Sharing. Currently, a disproportionate majority of the world's displaced populations over 80% are hosted by developing nations and frontline states. The failure of regional agreements, such as the European Union's Dublin Regulation (which places the burden of asylum processing on the first country of entry), highlights the collapse of international solidarity. Wealthier destination states frequently evade their obligations by providing financial aid rather than physical resettlement, leading to accusations of systemic inequity in global governance.

Mapping the Geopolitical Landscape: Stakeholder Dynamics and Strategic Postures

The geopolitical dynamics of this agenda are driven by distinct groups of stakeholders, each with competing national interests. Frontline and Transit States such as Turkey, Greece, Mexico and Libya, bear the immediate logistical and financial brunt of mass migration, demanding burden sharing quotas. In many instances, transit states leverage their geographic position, threatening to open their borders and release migrant flows as a diplomatic bargaining chip to extract financial aid or political concessions from wealthier neighboring blocs.

Destination States, encompassing much of Western Europe, North America and Australia, approach the agenda primarily through the lens of social cohesion and border integrity. While rhetorically committed to human rights, their domestic policies are increasingly focused on deterrence, rigorous vetting and the swift deportation of failed asylum seekers to mitigate domestic political backlash.

Origin States present a complex dynamic. While some are active conflict zones incapable of protecting their citizens, others view migration as a vital economic lifeline through international remittances. These states often lack the infrastructure or political will to repatriate and reintegrate deported citizens, severely complicating bilateral return agreements.

Finally, International Organizations and NGOs, led by the UNHCR, operate on a strict humanitarian mandate. They continuously lobby for the expansion of legal protections to include climate and survival migrants, advocating for a global governance model that prioritizes human survival over Westphalian sovereignty.



III. Background and Context

The modern crisis of immigration enforcement cannot be understood without first examining the deep historical and legal evolution of global border control. For centuries, the international system has been governed by the Westphalian concept of state sovereignty, which dictates that a nation possesses absolute, unquestionable authority over its own territory and its borders. Under this traditional legal framework, a government's right to grant or deny entry to foreigners was considered a matter of pure domestic policy, completely immune to external oversight. However, the catastrophic global conflicts of the 20th century exposed the fatal flaw in allowing domestic immigration law to operate without international humanitarian constraints.

The Pre-WWII Era and the Catalyst for Change

Before the mid-20th century, international refugee law simply did not exist. The League of Nations made minor, ad-hoc attempts to manage displacement such as creating the "Nansen Passport" in the 1920s to provide travel documents for stateless individuals fleeing the Russian Revolution. Yet, these were temporary administrative measures, not binding legal obligations. The fundamental jurisdiction over who could cross a border remained entirely up to the domestic laws of individual states.

The tragic consequences of this unchecked sovereignty culminated during the Holocaust. As millions of vulnerable individuals attempted to flee systematic extermination in Europe, they found themselves trapped by the strict domestic immigration quotas of destination countries. This failure proved to the newly formed United Nations that leaving the protection of vulnerable individuals to the discretionary whims of domestic border enforcement was a catastrophic moral failure.

The 1951 Refugee Convention: A Paradigm Shift in Law

In direct response to the post-WWII displacement crisis, the United Nations drafted the 1951 Convention Relating to the Status of Refugees which brought about three massive changes to global law. First, it created a universal, legally binding definition of a "refugee."

Second, the Convention codified the principle of non-refoulement under Article 33. This customary international law stripped sovereign states of their right to deport an individual to a territory where their life or freedom would be threatened.

Third, it introduced Article 31, which explicitly prohibited states from imposing criminal penalties on refugees for "illegal entry or presence." By establishing this rule, international law officially recognized that crossing a border irregularly to seek asylum is not a crime, directly contradicting the domestic

penal codes of many nations.

It was legally restricted to protecting individuals fleeing events that occurred before January 1, 1951 and its geographic scope was predominantly focused on Europe.

The 1967 Protocol: Universalizing Asylum

As the 1950s and 1960s progressed, the geopolitical landscape of the world drastically changed. The era of rapid decolonization in Africa, coupled with proxy wars fueled by the Cold War in Asia and Latin America, generated millions of new refugees.

Recognizing that mass displacement was a permanent global reality rather than a temporary European aftermath, the UN drafted the 1967 Protocol. This vital legal document removed the geographical and temporal restrictions of the original Convention. By ratifying the 1967 Protocol, states agreed to apply the core principles of the 1951 Convention to all refugees, regardless of when or where their displacement occurred.

Contemporary Drivers of Mass Displacement

The 1951 and 1967 frameworks were revolutionary, but they were built for a different era, one where hostile governments systematically targeted specific political or ethnic groups. Today, the reasons people are forced to flee are far more complex. Millions are crossing borders not to escape a dictator, but to survive total state collapse, generalized cartel violence, terrorist groups or the devastating fallout of climate change.

This creates a massive legal loophole. The 1951 Convention (specifically Article 1A(2)) defines a refugee very narrowly, requiring proof that a person is facing individualized persecution based on just five strict grounds: race, religion, nationality, social group or political opinion. Because people fleeing gang warfare or environmental disaster don't neatly fit into those boxes, destination countries exploit the outdated wording. By arguing that generalized violence or a collapsing climate isn't targeted persecution, governments can easily reclassify these individuals as "irregular migrants."

The 2018 Global Compacts: Soft Law vs. Hard Sovereignty

In an attempt to modernize global migration governance and close these legal loopholes, the United Nations introduced the Global Compact for Safe, Orderly and Regular Migration (GCM) and the Global Compact on Refugees (GCR) in 2018. These agreements were brought to the table to establish a cooperative, international approach to border management, emphasizing humane treatment, alternatives to detention and global burden-sharing.

However, there is a distinct difference between the laws of the mid-20th century and these modern responses. While the 1951 Convention is a legally binding treaty, the 2018 Compacts are explicitly classified as “soft law.” They are non-binding frameworks. They rely entirely on the political goodwill of member states and explicitly reaffirm the sovereign right of nations to dictate their own domestic migration policies. Because they carry no legal enforcement mechanisms, sovereign states frequently abandon these modern guidelines the moment domestic political pressures demand stricter border control.

The Modern Shift Toward Stricter Domestic Enforcement

This historical evolution brings the international community to its current crisis: a severe, escalating clash between international humanitarian obligations and modern domestic enforcement laws. In the 21st century, destination states have drastically altered their legal approach to border management, moving away from the humanitarian spirit of the post-WWII era toward a highly securitized, defensive posture.

Following the global security shifts of the early 2000s and subsequent economic recessions, domestic political rhetoric began reframing migration. Instead, irregular migration was increasingly legislated as an issue of National Security an existential threat to public order, economic stability and sovereign defense. This ideological shift birthed the concept of crimmigration, the rapid blurring of civil administrative law and criminal penal codes. By legally transforming asylum seekers into penal offenders, states justify the use of military-grade border patrols, arbitrary and indefinite detention in prison-like facilities and the denial of basic legal due process.

Furthermore, to legally circumvent the international principle of non-refoulement, states have engineered policies of “externalization.” Domestic laws have been creatively re-interpreted to push sovereign enforcement outward. By intercepting migrant vessels in international waters, funding third-party coast guards to halt transit or establishing offshore processing centers in remote nations, destination states create deliberate legal black holes. To execute these aggressive legal maneuvers, sovereign states have exponentially increased the funding, jurisdiction and paramilitary capabilities of domestic enforcement agencies.

IV. Navigating the Sovereignty-Human Rights Divide

The fundamental crisis at the heart of modern migration governance is the intense legal and political collision between the Westphalian concept of state sovereignty and the universal mandates of international human rights law. While international treaties lay out clear, binding protections for vulnerable populations fleeing persecution, domestic immigration enforcement agencies operate under national security mandates that frequently bypass, ignore or exploit loopholes in these global agreements. To successfully draft comprehensive resolutions, delegates must deeply analyze the specific mechanisms through which domestic enforcement clashes with international accountability.

1. The Criminalization of Irregular Migration

Historically, crossing a national border without proper authorization was treated by most legal systems as a civil or administrative breach, dealt with through bureaucratic processing rather than the penal system. In recent decades, however, there has been a severe structural shift toward “crimmigration”, the aggressive merging of criminal law and immigration enforcement.

The Asylum Dilemma This domestic criminalization directly contradicts the foundational principles of international refugee law. Article 31 of the 1951 Refugee Convention explicitly prohibits states from imposing penalties on refugees for “illegal entry or presence.” Therefore, penalizing an asylum seeker for how they entered the country fundamentally undermines their right to seek asylum.

The Enforcement Reality Despite this clear international mandate, the domestic enforcement reality is starkly different. In the name of national security and sovereign law enforcement, many states have rewritten their domestic penal codes to classify irregular entry as a severe criminal offense. By legally categorizing migrants as “illegal aliens” or federal offenders rather than asylum seekers, domestic enforcement agencies justify the deployment of military-grade border policing, the immediate stripping of civil liberties upon arrival and mass incarcerations. Sovereign states claim they are simply upholding domestic criminal law, while international human rights bodies argue this is a direct, systematic violation of international asylum rights.

2. Arbitrary Detention and Substandard Holding Facilities

The physical incarceration of arriving migrants has become one of the most contentious issues in the sovereignty-human rights divide. The way states

hold displaced persons frequently operates in a legal gray area, bypassing the standard protections of both domestic criminal law and international human rights law.

Default Detention Under the guidelines published by the United Nations High Commissioner for Refugees (UNHCR) and the International Covenant on Civil and Political Rights (ICCPR), the detention of migrants and asylum seekers must be a measure of absolute last resort. It should only be utilized when an individual poses a direct, proven security threat or a severe flight risk. However, domestic enforcement mechanisms frequently flip this standard, using mandatory, prolonged and sometimes indefinite administrative detention as the default standard operating procedure.

Conditions of Confinement Because immigration detention is classified under domestic law as “administrative” rather than “criminal,” detainees are frequently denied the basic constitutional rights afforded to actual criminal inmates, such as the right to a speedy trial or state-appointed legal counsel. Reports from global human rights monitors frequently detail severe overcrowding, inadequate sanitation and a fatal lack of basic medical or mental health care within these compounds.

3. Border Violence, “Pushbacks” and the Denial of Due Process

The principle of non-refoulement guarantees that no individual should be returned to a country where they face severe harm. Yet, domestic border agencies frequently engage in tactical practices specifically engineered to bypass this obligation.

Pushbacks A “pushback” occurs when border guards or coast guards intercept migrants at land borders or in international waters and forcefully push them back into neighboring transit countries or dangerous seas before they can formally request asylum. Legally, pushbacks constitute a blatant violation of the prohibition of collective expulsion, as they deny individuals the right to an individualized assessment of their protection needs.

Expedited Removals When migrants do successfully cross a border, domestic laws increasingly subject them to “expedited removals” or fast-track deportations. In these scenarios, domestic enforcement agencies are granted the power to deport asylum seekers within days or even hours of their arrival. This entirely bypasses the judicial system, denying vulnerable individuals access to legal counsel, translation services or a fair hearing before an immigration judge. States justify this by arguing that swift deportations are necessary to prevent border facilities from being overwhelmed, effectively sacrificing international due process on the altar of administrative efficiency.

Refoulement Practices Non-refoulement stands as the cornerstone right for protecting migrants, refugees and asylum seekers under international law, directly challenging aggressive domestic immigration enforcement.

Codified in Article 33 of the 1951 Refugee Convention, it extends beyond formal refugees to all via customary international law, binding even non-signatories; except in cases where the individual poses a serious threat to national security or has committed a particularly serious crime. It covers all forms of removal, including deportations, border pushbacks, sea interceptions and indirect refoulement.

Yet, nations continue to capitalize on the exception prevalent in the form of determined threat to continue forth with their refoulement practices to protect domestic interests.

4. The Externalization of Borders and Offshore Processing

To assert total border sovereignty without technically violating international law on their own soil, wealthy destination states have increasingly embraced the strategy of 'externalization.' This involves extending border enforcement beyond national territory through bilateral agreements, where states fund, train and equip the coast guards or border patrols of transit countries. In such arrangements, destination states maintain effective control over migrants while arguing that international asylum obligations, such as the right to legal representation and non-refoulement, do not apply because individuals have not formally entered their territory. This raises concerns under the 1951 Refugee Convention, the Convention Against Torture and the right to seek asylum.

By shifting enforcement responsibilities outward, states avoid direct accountability for abuses, allowing humanitarian concerns to remain outside public scrutiny. Externalization has also developed into a significant industry, with private contractors and technology firms involved in managing detention infrastructure and deportation systems.

A prominent example is the funding of the Libyan Coast Guard to intercept migrants in the Mediterranean before they reach European jurisdiction. States have also established offshore processing centres in third countries, where asylum seekers are held outside formal territorial jurisdiction, further complicating the application of international protection obligations.

5. The "Safe Third Country" Concept and Burden Shifting

Another major legal loophole utilized by domestic enforcement is the "Safe Third Country" concept. Under this policy, a destination state can refuse to hear an asylum claim and immediately deport the individual if they passed through another country deemed "safe" on their way to the border.

IV



According to UNHCR guidelines, for a state to legally transfer an asylum seeker to a third country, a “meaningful link” or sufficient connection must exist between the individual and that country. The UNHCR has explicitly stated that mere transit through a territory does not constitute a meaningful link.

Despite this, domestic legislatures frequently manipulate the concept to reject asylum seekers simply because they briefly crossed through an intermediate country. This practice effectively dismantles the concept of international burden-sharing. It allows wealthy destination states in the Global North to insulate themselves from migration flows, shifting the entirety of the financial, logistical and humanitarian burden onto the poorer nations of the Global South that happen to sit geographically closer to conflict zones. For delegates, addressing how sovereign states weaponize the Safe Third Country concept is paramount to restoring equity and accountability to the global asylum system.

V. The Human Toll: Impacts of Enforcement on Migrants and Asylum Seekers

Domestic enforcement mechanisms have severe, direct consequences and impact on the displaced people globally. This involves psychological, mental and emotional damage induced through both the stress of the nature of their problem and the volatile shelter environment in other nations. Some however are more affected due to the conflict and refugee status. These form the vulnerable groups and include women, children, the members of the LGBTQ+ community among others due to major dedicated acts of violence against them. The issues faced include:

1. Psychological and Mental Health Crises

Prolonged uncertainty during asylum processes contributes to mental health challenges, including anxiety, depression and trauma. This directly influences the high rates of clinical depression, PTSD and self-harm within holding facilities, leading to causes as detrimental as suicide.

The deliberate severing of minors from their parents to prosecute adults under local penal codes violates international child protection standards and inflicts documented, long-term cognitive and emotional trauma on children. Separation of families itself presents an issue of human consciousness and morality. Migrants are susceptible to extortion, violence and human trafficking during transit. Upon arrival, they are often met with immediate detention rather than the culturally sensitive, trauma-informed care required to address their compounded PTSD and hence experience trauma as a result of the journey.

2. Economic Hardships and Exploitation

Many destination states systematically deny asylum seekers the legal right to work while their claims are pending. This bars them from the formal economy and forces total reliance on underfunded state welfare or charity. The system also culminates a feeling of resentment among the domestic masses against refugees, due to the 'unfair' compensations provided. Due to the lack of legal work authorization, millions of undocumented migrants are pushed into the informal labour market where they are forced to work for low wages and are susceptible to abuse. The victims cannot report abuse without risking immediate deportation.

Fortified borders force reliance on illicit, highly expensive smuggling networks. The resulting "debt of migration" leaves new arrivals highly susceptible to extortion and modern slavery as they attempt to pay off cartels.



3. Social and Cultural Marginalization

Political rhetoric frames migration as a “security threat” or “economic drain”. This language normalizes xenophobia, which leads to a rise in anti-immigrant hate crimes and encourages profiling by local law enforcement.

Millions of refugee children are denied their right to education due to confinement or local laws requiring legal residency for public school enrollment. Hence, permanently crippling the future of the children and their families. Even upon securing legal status, long-term integration is held back by systemic exclusion.

VI. Existing Legal Systems

Several laws and policies have been passed to safeguard the rights of migrants, refugees and asylum seekers within the international legal framework.

Convention and Protocol relating to the status of refugees

The 1951 Convention for Refugees defines what a refugee is and it requires states to protect refugees from refoulement. Article 33 of the convention makes non-refoulement key against expelling refugees to a country where their life or liberty may be threatened due to race, faith, nationality or political opinion. However, Article 9 states that states may impose restrictions on certain refugee groups in cases where national security requires it, provided it is done before determining refugee status and without prejudice to final rights. This ensures that states cannot abuse enforcement powers against refugees. Article 31 states that refugees cannot be penalized for illegal entry and presence in a country when they come directly from a country of threat and need to be provided with time and facilities to enter lawfully or seek a third country, thereby countering border control measures that states have put in place.

The 1967 Protocol relating to the status of refugees abolished restrictions in the 1951 Convention's application area under the universal protection provision without refugee quotas. Therefore, it made it global in application, which is important in modern enforcement to filter refugees humanely and supersede deportations.

Human Rights Law Instruments

1. The Universal Declaration of Human Rights(UDHR)

In 1948, the Universal Declaration of Human Rights came into force.

The first two articles of the declaration state that no person shall be tortured or treated inhumanely and every person has the right to life and to be recognized as a legal person wherever they live and regardless of their status.

- Article 7 of the UDHR states that all individuals are equal before the law and are entitled to equal protection without discrimination.
- Article 5 prohibits torture and cruel, inhuman or degrading treatment or punishment.
- Article 14 recognizes the right of individuals to seek and enjoy asylum from persecution.

As a result of these articles, every individual is entitled to have access to legal justice without being discriminated against based on his/her race or place of origin or based on whether he/she is a migrant.

2. The International Covenant on Civil and Political Rights (ICCPR)

The International Covenant on Civil and Political Rights (ICCPR) is a global legal document that is binding on 173 nations.

- According to Article 7 of the ICCPR, “No one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment”. Torture and degrading treatment is prohibited without exception or derogations, no exceptions shall apply although Article 7 does concern itself with torture or cruel inhuman or treating.
- Article 9 states that the arbitrary arrest and detention of individuals is prohibited and that there must be a lawful court review of the arrest or detention of individuals, however, with respect to immigration detention it shall be valid only if it is proportionate and necessary to do so.
- Article 13 of the ICCPR provides procedural safeguards in expulsion cases, requiring that individuals be allowed to submit reasons against their removal and have their case reviewed.
- According to Article 10, all persons being detained must be treated humanely and shall be separated by sex/age, allowed visits from family members, rehabilitative in nature in order for States to conduct a risk assessment prior to an individual being removed from the jurisdiction and that they have the right to dignity and to treat them with humane conditions.

3. The American Convention on Human Rights

The American Convention on Human Rights provides for the regional protection of all persons in the Americas by the Organization of American States (OAS). This applies to all people regardless of their race, color, sex, language, religion, political opinion, economic status or national or social origin.

The ACHR prohibits mass expulsions, while also ensuring that a person can undergo a judicial evaluation prior to being expelled; furthermore, torture and other inhumane treatment will not occur due to a use of non-refoulement.

Other Specialized Instruments

1. The UN Convention Against Torture (CAT)

Article 3 prohibits sending someone back to their country of origin, their return to their country of origin or extradition if substantial evidence demonstrates that a person will be tortured if they are returned to their country of origin. Additionally, Article 1 defines torture as the intentional

infliction of severe pain or suffering on a human being, either physical, mental or degrading.

Article 2 of the CAT states that any act of torture is a violation of human rights, a crime against humanity and a war crime regardless of the intention or purpose of the perpetrator, according to international law and is prohibited by international law.

The CAT is designed to protect the rights of migrants against law enforcement authority abuses through the safeguards set forth in Article 3 of the CAT.

2. The International Convention for the Protection of All Persons from Enforced Disappearance

The International Convention for the Protection of All Persons from Enforced Disappearance (ICPPED) has criminalized enforced disappearance.

Article 1 of the convention prohibits enforced disappearance under all circumstances, including immigration emergencies. This ensures that states do not use immigration emergencies as an excuse for the enforced disappearance of immigrants.

Article 2 of the convention explains the crime of enforced disappearance and the involvement of states. Article 3 requires states to make enforced disappearance a crime with severe penalties. This allows for the criminalization of immigration officials for the enforced disappearance of immigrants. Article 7 requires states to have legal detention systems and records of detainees. Article 8 prohibits secret detention and requires states to ensure transparency in detention.

Article 9 requires states to ensure judicial oversight of detention. Article 12 and Article 24 require states to investigate enforced disappearance and provide reparations for the victims.

ICPPED requires states to ensure transparency in immigration detention. This protects immigrants and refugees from enforced and secret detention.

Regional Instruments

The 1969 OAU Convention Governing Specific Aspects of Refugee Problems added individuals who are fleeing 'general violence' and 'occupation due to a disturbance of public order' as refugees along with individuals who have been persecuted. It also prohibits the expulsion of refugees (refoulement) and establishes standards for the treatment of refugees that are wider than those found in international law.

The 1984 Cartagena Declaration on Refugees proposes that refugees include persons who are fleeing massive violations of human rights, foreign aggression and disturbances in public order. Though the Declaration does not have legal force, it has established a basis from which national and regional laws arise.

The Qualification Directive (2011/95/EU) incorporates the concept of refugees and principles of non-refoulement into the EU legal system by requiring member states to grant protection to individuals who fear serious harm and prohibiting member states from sending back refugees. Member states are also permitted to have exclusion policies and to absolutely prohibit refoulement. This represents an increase in the harmonisation of asylum policies within the EU and a divergence of regional application.

Migration-Specific Instruments

1. The International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families (ICRMW)

The International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families (ICRMW), adopted by the UN General Assembly in 1990 and in force since 2003, is the leading binding instrument specifically protecting all migrant workers, documented and undocumented and their families across the migration cycle. Unlike the refugee-specific instruments, it covers all labor migrants and vulnerable groups of migrants at risk of exploitation in the context of immigration enforcement measures comprehensively.

Article 2 of the Convention broadly defines “migrant workers” to include all persons engaged or seeking engagement in remunerated activity in a State of which they are not citizens, including irregular migrants, thus protecting them universally without any distinction of status, a critical component of the Convention in countering punitive immigration laws targeting undocumented migration flows. Article 16 of the Convention guarantees equal treatment with nationals in the recruitment, conditions and training of employment, while Article 25 prohibits the collective expulsion of lawfully present migrant workers, a violation of their labor rights through mass raids in the workplace or actions targeting visa overstayers.

Article 22 is specific in banning the collective expulsion of migrants, which requires individualized expulsion decisions with a fair trial, judicial review and family impact assessments, directly challenging the policy of wholesale deportation under domestic immigration laws. Article 50 requires states to keep a list of migrants in detention and expedite trials for immigration offenses, while Article 68 allows the treaty’s committee to receive state reports and interstate complaints, providing a check for enforcement abuses. Article 69 is an urging of states to criminalize smuggling/trafficking acts against migrants, which is connected with the agenda’s goal of providing safe pathways with border controls.

Global Compact for Safe, Orderly and Regular Migration (GCM, 2018)

The GCM, which has been ratified by 152 UN member states in December 2018, is a non-binding instrument that addresses all aspects of migration in 23 objectives. It aims to balance human rights and sovereignty in immigration control and proposes best practices in rights-compliant enforcement mechanisms. It is a soft law instrument that relies on political will and integration into national policies to provide solutions to issues such as pushbacks, detention and rights violations in migration control.

Objective 5 is dedicated to balancing measures to combat forced migration while respecting the right to life, dignity and protection under international law, including non-refoulement. It underlines the importance of risk assessments prior to return and protection needs identification.

Objective 11 tackles safe and coordinated border control by proposing alternatives to detention and protection of migrants in enforcement procedures.

UN Resolutions

UN General Assembly and Human Rights Council resolutions, which apply to all individuals irrespective of their nationality, status or documentation, have their roots in various principles such as dignity, non-discrimination and freedom from arbitrary treatment, under various documents such as the UDHR and ICCPR. Even though these resolutions do not specifically address refugees, they have been found to be indispensable tools in protecting the rights of migrants, refugees and asylum seekers under various national immigration laws, which place a moral and operational imperative on states to 'humanize' border controls, detention and removal procedures that often affect vulnerable individuals, such as refugees, alongside economic migrants.

1. UNGA Resolution A/RES/70/147 (2016)

Ratified unanimously in the midst of a European migration crisis, A/RES/70/147 strongly and comprehensively calls upon states to stop arbitrary immigration detention, especially for vulnerable individuals such as children and strengthen safe transit rights by providing access to consultative mechanisms, legal aid and family reunification. It requires training for border, immigration and law enforcement officials to prevent abuse, xenophobia and exploitation, while encouraging independent complaint mechanisms that are not subject to reprisals. This resolution differs from A/RES/69/167 in that it places greater emphasis on post-arrival protection and institutional reforms such as national focal points for migrant rights, unlike A/RES/69/167 that places greater emphasis on transit rights and reforms in enforcement pipelines. It also provides guidelines to reform domestic immigration systems

and stop violations at checkpoints where refugees are subjected to arbitrary detention without due process.

2. UNHRC Resolution A/HRC/RES/35/17 (2017)

A/HRC/RES/35/17 safeguards the human rights of all migrants throughout the migration cycle by requiring the full and strict adherence to non-refoulement principles, the minimization of detention with alternatives and adequate remedies for violations with compensation. It also requires states to submit periodic reports on the impact of enforcement and calls for the Special Rapporteur's investigations of systemic violations with a focus on remediation and non-refoulement.

VII. ROLE OF INTERNATIONAL AND REGIONAL ORGANISATIONS

International organisations intervene in migration and refugee protection facilitating cooperation between states, coordinate asylum systems and humanitarian responses and monitor compliance with international human rights and refugee law.

1. United Nations High Commissioner for Refugees (UNHCR)

In relation to the protection of migrants and refugees under domestic immigration enforcement mechanisms, UNHCR plays a critical role in monitoring state compliance with international refugee law, particularly the principle of non-refoulement, which prohibits the forced return of individuals to countries where they face persecution. UNHCR also advocates for fair asylum procedures and alternatives to immigration detention, particularly for vulnerable populations such as children, victims of trafficking and asylum seekers awaiting status determination.

2. International Organization for Migration (IOM)

With regard to domestic immigration enforcement, IOM works with governments to develop migration management systems that respect the rights and dignity of migrants. It also plays a significant role in facilitating Assisted Voluntary Return and Reintegration (AVRR) programs, which aim to provide migrants who are unable to remain in host countries with safe and dignified return options, often as alternatives to forced deportations.

3. Office of the United Nations High Commissioner for Human Rights (OHCHR)

OHCHR plays a key role in monitoring human rights violations occurring at borders, in detention centers and during deportation procedures. Through its engagement with the United Nations Human Rights Council, OHCHR supports investigations and discussions on migrant rights, encouraging states to reform enforcement policies that may undermine fundamental protections.

Regional Organisations

1. European Union (EU)

The European Union is a regional organization that has developed the Common European Asylum System to coordinate and balance asylum procedures among member states. The EU has established agencies such as Frontex to coordinate border operations. These systems aim to regulate

migration flows, but they have faced criticism regarding pushback practices, detention policies and the treatment of asylum seekers.

2. African Union (AU)

The African Union plays a key role in addressing displacement and migration challenges across the African continent. It has adopted regional frameworks such as the 1969 OAU which expanded the international definition of refugees to include individuals fleeing armed conflict and events seriously disturbing public order.

AU human rights institutions examined cases involving the expulsion of migrants and the treatment of refugees, thereby contributing to regional oversight of immigration enforcement practices.

VIII. CASE STUDIES

1. Australia's offshore detention policy

One of the most controversial procedures relating to irregular migration has been Australia's immigration enforcement policy that places asylum seekers who arrive in the country via boat into offshore processing centres in a third country. The majority of these processing centres are located on the islands of Nauru and Manus Island (Papua New Guinea). While the Australian Government formally adopted this policy in 2012 as part of the 'offshore processing' legal framework, one of its main objectives included deterrence of irregular sea arrivals and prevention of human smuggling.

The Australian Government had stated that the policy is intended to act as a deterrent for irregular maritime arrivals by decreasing dangerous journeys at sea and/or preventing deaths and/or harm associated with paths taken when migrating irregularly.

In turn, the outcomes of this process have been reported as violations of human rights as well as reports of people being housed unlawfully in inhumane detention facilities located offshore. Immigration has continued to occur as a result of this policy, but alternative migration routes became increasingly unsafe and otherwise undiscovered by Australian law enforcement authorities.

This setup outsourced Refugee Status Determination, raising concerns regarding compliance with Article 33 of the 1951 Refugee Convention (non-refoulement) and Article 31 (non-penalization for illegal entry), as asylum seekers were denied direct access to protection mechanisms. It also engages ICCPR Articles 7 and 9, concerning protection from inhuman treatment and arbitrary detention. This has raised concerns regarding Australia's compliance with its non-refoulement obligations under international law.

In international law, the principle of effective control prevails as the wrongdoing and human rights violations, when linked to State sponsorship, can effectively push it towards accountability. This effective control can be established through funds, policing staff etc.

Australia tried to evade the regulations under sovereignty claims from Nauru and PNG. However, UN Human Rights Committee findings have criticised Australia's stance, citing its "significant control and influence" over Nauru facilities, bringing detainees within its ICCPR jurisdiction demanding compensation. The impact of the same was negative throughout: immigration persisted, the nation paid more to keep an immigrant at off-shore facilities than to hold onshore detentions or community integration, Australia was required to provide compensation fees against human rights violations in Nauru and the country faced global criticism, raising concerns regarding

accountability. Nauru in turn gained a dependency on Australia for its massive investments.

2. The Mediterranean Crossings and EU Border Policies

The current situation on the central Mediterranean migration route includes a large number of people trying to come to Europe from Libya. As a response to the high level of illegal migration, the EU has increased its efforts to control its borders at sea through surveillance, cooperation with North African countries and the use of agencies such as Frontex.

The EU and other governments believe that their “border control” strategies will discourage migrants from engaging in dangerous trips, disrupt smuggling networks and save humans’ lives by conducting search and rescue operations (in accordance with the principles set out in the SOLAS Convention) as well as preventing unsafe voyages.

However, there have been numerous reports of systematic pushbacks, where boats have been returned to Libya by Italian and Maltese authorities before migrants have been able to disembark or demonstrate whether or not they qualify for asylum. Many of those returned have been detained indefinitely and there have been reports of exploitation, including forced labour. Immigration routes are continuing to be used even though they are much more dangerous (by using unsafe overland routes or hiding in vessels), thus increasing the number of people who die attempting to enter Europe.

By designating Libya to perform external protection responsibilities, European States have been criticised for potentially circumventing their obligations under Article 33 of the 1951 Refugee Convention, by asserting that the pull-backs being made by Libya were in compliance with their handling of search-and-rescue activities as prescribed in international law. They also engage Article 14 of the UDHR (right to seek asylum) and ICCPR Article 7, which prohibits return to inhuman or degrading conditions.

The Central Mediterranean migration route has been identified as one of the largest and fastest growing routes for irregular migration into Europe. Thousands of migrants and asylum seekers from North Africa enter Europe every year trying to cross the Mediterranean Sea from North Africa into Southern Europe. Most of these journeys begin in Libya with the ultimate goal of reaching Europe.

3. Rohingya Refugee Crisis

Rohingya Muslims are a minority group in Myanmar who are not recognized as citizens under Myanmar’s 1982 Citizenship Law and are often treated as illegal immigrants. During the 2017 Rohingya crisis, the Myanmar military targeted Rohingya communities, with reports indicating mass killings, sexual violence and destruction of villages.

India witnessed an influx of Rohingya Muslims from Myanmar following the crisis in 2017. The Indian government classified them as illegal immigrants rather than refugees and in 2018, 7 Rohingya men were deported back to Myanmar. Subsequently, more Rohingya Muslims detained in Jammu faced threats of deportation. The government relied on the Foreigners Act, 1946 to justify these actions, citing national security concerns.

Two Rohingya refugees, Mohammad Salimullah and Mohammad Shaqir filed a petition in the Supreme Court, arguing that deportation violates the principle of non-refoulement under international refugee and human rights law, as well as Article 21 of the Indian Constitution. The Court observed that rights under Article 19 of the Constitution do not apply to non-citizens and noted that India is not a signatory to the 1951 Refugee Convention. Consequently, the Court declined to grant an interim order to halt deportations.

The United Nations High Commissioner for Refugees (UNHCR) opposed the deportations, stating that they raised concerns regarding violations of non-refoulement and urging India to provide protection, emphasizing the risks faced by Rohingya individuals in Myanmar.

Reports indicate that deported Rohingya individuals faced detention and severe restrictions in Myanmar, including limited access to food, healthcare and freedom of movement. There have also been allegations of abuse, forced labour and violence.

Those remaining in India largely reside in informal settlements, often facing the constant threat of detention, with limited access to sanitation, clean water and essential services, relying on NGOs and community support. Some are also held in detention centres with restricted access to basic facilities. UNHCR provides registration and limited assistance; however, its role remains constrained by domestic legal frameworks.

Case studies related to refugees, asylum seekers and migrants

1. UK Temporary refugee status program

The United Kingdom has proposed sweeping reforms to its Refugee Protection System through primary legislation, with implementation targeted for mid-late 2026 following initial frameworks announced in March 2024. Under this policy, refugees granted status receive Temporary Protection for 30 months from application date, requiring reassessments at least every 12 months to verify ongoing threats in their country of nationality.

The UK Government contends this orderly, finite system relieves housing burdens, supports Rwanda removals and ensures returns when home conditions permit safety and security. The result has been decreased refugee

mental health, anxiety, low morale, educational and employment barriers and family separations during Rwanda transfers without documentation support, with reassessments relying on current data and Rwandan inputs.

This framework significantly alters permanent rights under 1951 Refugee Convention Article 32, outsourcing risk evaluation to UK Border Force and bypassing comprehensive integration support. In international law, effective control prevails through UK guidelines, funding, instructions and enforcement compliance, linking violations to state sponsorship.

The program further engages ICCPR Article 7 (protection from inhuman treatment) and Article 9 (protection from arbitrary detention), particularly where removal or transfer arrangements expose individuals to unsafe conditions. It also engages procedural safeguards under international law, particularly in relation to fair review and due process in removal decisions. The United Kingdom has been criticized for policies that may limit the effective application of certain international human rights protections in the context of immigration enforcement.

International judicial and human rights bodies have raised concerns regarding aspects of these policies, particularly in relation to potential risks arising from removals and status reassessments. The impact throughout has been negative; refugees pursue riskier illegal routes, UK exceeds budgetary limits on permanent residency, faces legal challenges and adverse findings, encounters international isolation and fosters Rwanda's economy through UK payments establishing new businesses.

2. Pushbacks in Latvia, Lithuania and Poland

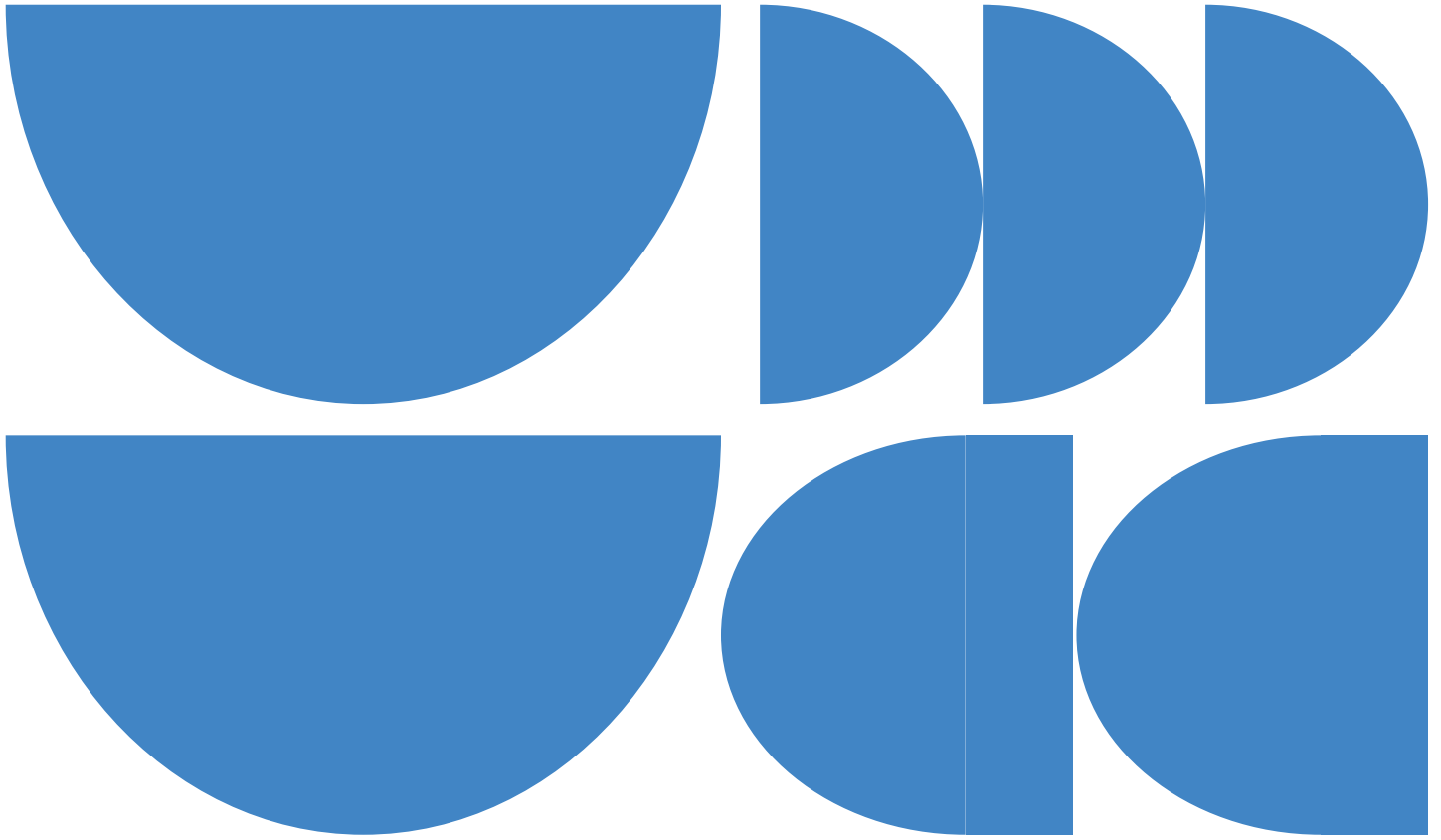
Poland, Latvia and Lithuania have implemented some of the most controversial border policies along the EU's eastern borders, in response to the irregular migration being facilitated by Belarus. Since 2021, the three countries have push-backed asylum seekers and irregular migrants from Belarus at their borders without allowing them to disembark, screen for asylum or identify themselves. The governments of the three countries formally established push-backs through emergency legislation and the construction of razor-wire fences along their borders. They claim that these policies are necessary to counter the "weaponization" of migration by the Belarusian government, while at the same time protecting the countries from hybrid threats to their national sovereignty.

The ultimate result of Poland, Latvia and Lithuania's push-back policies has been numerous human rights violations, including hypothermia and lacerations from razor wire; as well as deportations back into Belarus, where individuals were held in detention facilities that abuse and torture detainees and individuals migrating through treacherous forest routes, in spite of the countries having constructed extensive barriers and stationed military personnel on their borders to deter illegal crossings.

The measures used in this case had the effect of circumventing non-refoulement obligations under international law, notably Article 33 of the 1951 Refugee Convention relating to the Status of Refugees and Article 3 of the ECHR, by preventing any access to territory until claims could be made. Additionally, the lack of individual assessment and mass pushbacks conflict with due process guarantees under ICCPR Article 13 and protections against arbitrary detention under Article 9. Under international law, states can establish effective control through the presence of state officials, through fence patrols and through an array of thermal surveillance that may link violations to the jurisdiction of the EU through execution across a border.

The Polish, Latvian and Lithuanian governments invoked Belarusian sovereignty and emergency derogations, but the jurisprudence of the European Court of Human Rights has emphasized that jurisdiction may be established through effective control, even in border contexts, thereby holding states accountable for violations arising from collective expulsions and denial of access to asylum.

The consequences include increased reliance on unsafe migration routes, significant financial expenditure on border infrastructure and continued legal challenges regarding compliance with international obligations.



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**Thank
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